



Licensing (Amendment) Act 1977

1977 CHAPTER 26

An Act to amend section 186 of the Licensing Act 1964.
[22nd July 1977]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. For subsection (1) of section 186 of the Licensing Act 1964 Amendment of Licensing Act 1964. there shall be substituted the following subsections:— 1964 c. 26.

“(1) For the purpose of preventing or detecting the commission of any offence against this Act a constable may enter licensed premises, a licensed canteen or premises for which or any part of which a special hours certificate is in force under section 78 of this Act—

- (a) at any time within the hours specified in relation to the premises in subsection (1A) of this section, and
- (b) in the case of premises for which a justices' licence is in force or a licensed canteen, at any time outside those hours when he suspects, with reasonable cause, that such an offence is being or is about to be committed there.

(1A) The hours referred to in subsection (1)(a) of this section are—

- (a) in the case of licensed premises (other than premises which are licensed premises by virtue only of an occasional licence) or a licensed canteen, the permitted hours and the first half hour after the end of any period forming part of those hours;

- (b) in the case of premises for which an occasional licence is in force, the hours specified in the licence;
- (c) in the case of premises for which, or any part of which, a special hours certificate is in force under section 78 of this Act, the hours beginning at eleven o'clock in the evening and ending thirty minutes after the end of the permitted hours fixed by section 76 of this Act;

and, in relation to premises within more than one paragraph of this subsection, the hours referred to in subsection (1)(a) are the hours specified in any of the relevant paragraphs.”.

Short title,
commence-
ment and
extent.

2.—(1) This Act may be cited as the Licensing (Amendment) Act 1977.

(2) This Act shall come into force at the end of the period of one month beginning with the day on which it is passed.

(3) This Act does not extend to Scotland or Northern Ireland.